

24NWCV01535 24NWCV01535

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CECILIA M. CACERES v. TJX COMPANIES, ET AL.

CASE NO.: 24NWCV01535

HEARING: 09/10/2026 @ 9:30 AM

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TENTATIVE ORDER

Defendant T.J. Maxx of CA, LLC's demurrer to the FAC is
SUSTAINED with 30 days LEAVE TO AMEND.

Moving party to give notice.

Defendant T.J. Maxx of CA, LLC, erroneously sued as TJX
Companies/TJ Maxx, (Defendant) demurs to the first amended complaint (FAC).

Background

Pro per Plaintiff Cecilia M. Caceres (Plaintiff) filed this
premises liability action against TJX Companies and TJ Maxx Zurich American
Insurance Company on May 15, 2024. On October 11, 2024, Plaintiff filed the
operative FAC. The FAC alleges that on May 14, 2022, while Plaintiff was
shopping at Marshalls in Southgate, Plaintiff slipped and fell on a puddle of
liquid resulting in injuries.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

Code of Civil Procedure

section 430.10, subdivision (f) provides for a demurrer where a pleading is uncertain. Demurrers for uncertainty are disfavored and are only sustained where a pleading is so incomprehensible a defendant cannot reasonably respond. (A.J. Fistes v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695; Khoury v. Maly's of California (1993) 14 Cal.App.4th 612, 616.)

“Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A “[p]laintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Ibid.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) “The means by which the demurring party met and conferred...and that the parties did not reach an agreement” or (b) “[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.”

(Code Civ. Proc., § 430.41, subd. (a)(3).)

Defense counsel emailed Plaintiff to meet and confer regarding its demurrer but did not receive a response. (Manzoori Decl., ¶ 2.) Thus, Defendant has complied with the meet and confer requirement.

Discussion

Defendant demurs to the FAC on the grounds that Plaintiff does not state facts to constitute a cause of action and that the FAC is uncertain.

Here, the FAC provides a statement of facts without putting forth a cause of action. Based on the facts alleged, and the Defendant's interpretation of these facts, the Court only presumes the FAC is attempting to allege premises liability or negligence. Based on this deficiency, the Court agrees that the FAC is uncertain.

Moreover, Defendant argues that the FAC does not allege a cause of action for premises liability or negligence, or a different cause of action. The elements for a cause of action for negligence are "(1) a legal duty to use due care; (2) a breach of that duty; (3) a reasonably close causal connection between that breach and the resulting injury; and (4) actual loss or damage." (Ahern v. Dillenback (1991) 1 Cal.App.4th 36, 42.) "The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

Defendant argues the FAC does not allege "that Defendants owned, leased, occupied or controlled the subject property, that a dangerous condition existed, that Defendants had actual or constructive notice of the condition or that Defendants failed to take reasonable steps to remedy, repair or warn of the condition." (Dem., 4:24-26.) The FAC alleges "[o]n my way Out, at the cashier next to the exit door, I slipped on right Foot on a puddle of liquid, which the testimony of the employee stated that it was the urine of a little girl, and all the weight went to a down on my right hand when it came into contact with the floor to support myself. I scraped my right arm and my right shoulder had a strong impact." (FAC, 1:21-25.) The Court agrees that the FAC does not allege the aforementioned elements for premises liability or negligence as raised by Defendant.

Accordingly, Defendant's demurrer to the FAC is SUSTAINED
with 30 days LEAVE TO AMEND.